

M/s Ananya Enterprises v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 February 2024 · 2024:AHC:25426-DB · Writ-C No. 45476 of 2023 · **Writ dismissed; clause 6.5 left open if not availed.**

HEADNOTE

A second writ on the same cause of action, after Writ-C No. 32166 of 2023 was disposed of on 4 October 2023, was dismissed, leaving the petitioner free to move an application under clause 6.5 of the U.P. Electricity Supply Code, 2005 if that remedy had not already been availed.

FACTUAL SUMMARY

M/s Ananya Enterprises filed Writ-C No. 45476 of 2023 in the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd. and another. On 17 January 2024 the Division Bench, at the licensee's request, directed that the petition be put up as fresh on 7 February 2024. At the later hearing the licensee objected that the petition was a second writ on the same cause of action. The petitioner's earlier Writ-C No. 32166 of 2023 against the same licensee had been disposed of on 4 October 2023. That objection was not disputed.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

Second writ left to clause 6.5

HOLDING

The second writ, filed for the same cause of action after Writ-C No. 32166 of 2023 was disposed of on 4 October 2023, is dismissed, leaving the petitioner free to move an application under clause 6.5 of the U.P. Electricity Supply Code, 2005 if that remedy has not already been availed. ¶ 1-2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench dismissed the second writ and left the petitioner to apply under clause 6.5 if that remedy had not already been availed, without deciding the supply dispute. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNDERLYING SUPPLY DISPUTE

The order does not recite the demand or connection dispute and does not decide it. ¶ 1-2

NOT DECIDED — WHETHER AN APPLICATION UNDER CLAUSE 6.5 HAS ALREADY BEEN MOVED

The clause 6.5 route is left open only if the petitioner has still not availed it. ¶ 2